

Ravi Dixit v. U.P. Power Corporation Limited and 5 Others

High Court of Judicature at Allahabad · Division Bench · 25 May 2023 · 2023:AHC:116504-DB · WRIT - C No. 18123 of 2023 · **Demand notice withdrawn; fresh hearing to follow Supply Code.**

HEADNOTE

On the Electricity Department's statement that the demand notice dated 1 June 2021 had been withdrawn and a fresh hearing notice issued, the Court held that no further direction was required except that the respondents proceed strictly in accordance with the procedure prescribed under the Electricity Supply Code, 2005.

FACTUAL SUMMARY

The petitioner, Ravi Dixit, challenged a demand notice dated 1 June 2021 issued by respondent no. 3. The notice, raised through the U.P. Power Corporation Limited and its officers, sought recovery of electricity dues from him. At the hearing, counsel for the respondent Electricity Department informed the Allahabad High Court that the impugned demand notice had been withdrawn. Counsel further stated that the petitioner had been issued a notice giving him a fresh opportunity of hearing on the demand.

HOLDING-UNITS

HOLDING-UNIT · Electricity Supply Code, 2005

Withdrawn demand; fresh hearing under the Supply Code

HOLDING

Because the impugned demand notice dated 1.06.2021 had been withdrawn and the petitioner had been given a fresh opportunity of hearing, no further writ direction was required, save that the respondents must proceed strictly in accordance with the procedure prescribed under the Electricity Supply Code, 2005. ¶ 2-3

FLAG No numbered clause is stated; the order refers only to the procedure prescribed under the Electricity Supply Code, 2005.

PRINCIPLE TAGS

proceed-strictly-under-supply-code-procedure Once the impugned demand notice stood withdrawn and a fresh hearing notice had issued, the Court gave no merits direction and required only that the respondents follow the procedure prescribed by the Electricity Supply Code, 2005. ¶ 2-3

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — THE PETITIONER'S LIABILITY FOR THE ELECTRICITY DUES COVERED BY THE DEMAND NOTICE DATED 1.06.2021

The notice was withdrawn and a fresh hearing was to be held. The Court did not determine the dues. ¶ 2-3